

PCU320326 Chavez, Nathan vs. Navarro, Maritza et al

County: tulare

Division: Civil Law and Motion

Department: 19

Hearing date: 2026-09-08

Motion: Defendant's Motion to Strike

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Re: Chavez, Nathan vs. Navarro, Maritza et al

Case No.: PCU320326

Date: September 8, 2026

Time: 8:30 A.M.

Dept. 19-The Honorable Russell P. Burke

Motion: Defendant's Motion to Strike

Tentative Ruling: To grant the motion with leave to amend; Plaintiff shall have ten (10) days to file an amended complaint.

Facts

In this motor vehicle negligence case, Plaintiff seeks punitive damages for malice and oppression based on the following:

"Plaintiff alleges that Defendant Maritza Navarro's and Does 1-25, Inclusive, conduct was despicable and carried out with a willful and conscious disregard for the rights and safety of others. At approximately 11:05 p.m. on July 14, 2023, Defendant Navarro chose to operate a motor vehicle while severely intoxicated - exhibiting slurred speech, red and watery eyes, and a strong odor of alcohol - on an unlit, two-lane stretch of State Route 65 in rural Tulare County, in darkness, at a high rate of speed in independent violation of Vehicle Code § 22350. Despite unobstructed sightlines ahead, Defendant Navarro failed to perceive Plaintiff's vehicle, made no attempt to brake or take evasive action, and - by her own admission - was simultaneously distracted by her phone at the moment of impact. When questioned by law enforcement, she affirmatively denied consuming any alcohol, then failed field sobriety tests and registered a BAC above the legal limit. She was arrested on scene for felony DUI causing injury under Vehicle Code §§ 23153(a) and (b), with felony charges forwarded to the Tulare County District Attorney. These concurrent/deliberate choices - driving while heavily intoxicated, at excessive speed, in darkness, while distracted by her phone, followed by a conscious false denial to law enforcement - constitute despicable conduct carried on with a willful and conscious disregard for the rights and safety of others, including Plaintiff, within the meaning of Civil Code § 3294(c)(1)-(2), and go well beyond mere intoxication under Taylor v. Superior Court (1979) 24 Cal.3d 890.

Plaintiff further alleges that Defendant Patricia Esquivel, despite actual knowledge of Defendant Navarro's dangerous propensities - including a pattern and habit of consuming alcohol and driving while intoxicated - consciously and deliberately

chose to entrust Navarro with possession and operation of Esquivel's vehicle on the night of July 14, 2023. Defendant Esquivel's conduct in entrusting her vehicle to Navarro under these circumstances was despicable and carried out with a willful and conscious disregard for the rights and safety of others, including Plaintiff, within the meaning of Civil Code § 3294(c)(1)-(2). The full extent of Esquivel's knowledge of Navarro's propensities is the subject of ongoing discovery." (Complaint – Exemplary Damages Attachment)

Defendants move to strike the request for punitive damages and allegations referencing such damages, arguing a failure to plea sufficient ultimate facts as to malice and oppression.

In opposition, Plaintiff argues that the punitive damages claim relies on more than simply driving while intoxicated and alleges a "felony level DUI causing injury" an unsafe speed violation, a failure to perceive Plaintiff's vehicle cellular phone distraction and denial of alcohol consumption.

Authority and Analysis

California's punitive damages statute, Civil Code section 3294, provides: "In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant." (§3294, subd. (a).)

"Oppression," "fraud" and "malice" each describe discrete grounds for an award of punitive damages. "Civil Code section 3294 provides for recovery of exemplary damages for either or all of the three defined delicts -- oppression, fraud or malice." (Pistorius v. Prudential Insurance Co. (1981) 123 Cal.App.3d 541, 556, fn. 8)

"Punitive damages are imposed as punishment for the defendant's serious misconduct." (5 Witkin Cal. Proc. (5th ed. 2019) Pleading, § 933.) "Although the basic principle of damages is compensation, additional damages may be given in tort actions where the defendant's conduct has been outrageous, for the purpose of punishing and deterring him or her and others from outrageous conduct in the future. Citations.]" (6 Witkin Sum. Cal. Law (11th ed. 2017) Torts, § 1727.)

Civil Code section 3294, subdivision (c) defines the terms "malice," "oppression," and "fraud" for purposes of punitive damages liability: "(1) 'Malice' means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. [¶] (2) 'Oppression' means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. [¶] (3) 'Fraud' means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury."

Relevant here, "malice" as used in section 3294, means conduct "intended ... to cause injury to the plaintiff" or "despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." Section 3294's reference to "despicable conduct" represents a "substantive limitation on punitive damage awards." (College Hospital Inc. v. Superior Court (1994) 8 Cal.4th 704, 725.) "Absent an intent to injure the plaintiff, 'malice' requires more than a 'willful and conscious' disregard of the plaintiffs' interests. The additional component of 'despicable conduct' must be found. [Citations.]" (Ibid.)

In reviewing a motion challenging the sufficiency of punitive damages allegations, the court must consider whether the factual allegations concerning the actual conduct alleged "apprises the adversary of the factual basis of the claim. [Citations.]" (Kiseskey v. Carpenters' Trust for So. California (1983) 144 Cal.App.3d 222, 234.)

The factual allegations, in addition, must support entitlement to punitive damages. "Notwithstanding relaxed pleading criteria" permissible with other claims, punitive damages "demand firm allegations." (G. D. Searle & Co. v. Superior Court (1975) 49

Cal.App.3d 22, 29.) "When the plaintiff alleges an intentional wrong, a prayer for exemplary damage may be supported by pleading that the wrong was committed willfully or with a design to injure. When nondeliberate injury is charged, allegations that the defendant's conduct was wrongful, willful, wanton, reckless or unlawful do not support a claim for exemplary damages; such allegations do not charge malice." (Ibid., internal citations omitted.)

"Animus malus or evil motive, then, is the central element of the malice which justifies an exemplary award." (G. D. Searle & Co. v. Superior Court (1975) 49 Cal.App.3d 22, 30.) "[C]onscious disregard of safety as an appropriate description of the animus malus which may justify an exemplary damage award when nondeliberate injury is alleged." (Id., at 32.)

However, authority nonetheless indicates that "a nonintentional tort can have the characteristics of an intentional tort to the extent of embracing the concept of malice as used in Civil Code section 3294." (Nolin v. National Convenience Stores, Inc. (1979) 95 Cal.App.3d 279, 286). "A tort having some of the characteristics of both negligence and willfulness occurs when a person with no intent to cause harm intentionally performs an act so unreasonable and dangerous that he knows, or should know, it is highly probable that harm will result. (Citation). Such a tort...is most accurately designated as [w]anton and reckless misconduct." (Id.) Such a claim justifies an award of punitive damages. (Id.).

Although, as explained by the court in Lackner, California's punitive damages statute, Civil Code section 3294 was amended in 1987 as to the definition of malice, the Court finds pre-amendment driving under the influence cases assistive.

In Taylor v. Superior Court (1979) 24 Cal.3d 890, the defendant had previously caused a serious automobile accident while driving under the influence, had been arrested and convicted for drunken driving on numerous prior occasions, had recently completed a period of probation following a drunk driving conviction, and was presently facing an additional pending criminal drunk driving charge at the time of the accident. (Id. at 895)

The California Supreme Court found a sufficiently pleaded claim for punitive damages where a plaintiff included allegations regarding the defendant's history of driving under the influence and previous involvement in criminal legal proceedings to show that defendant was aware of the dangerousness of his driving while intoxicated. (Id. at 893.)

Here, there is no application of Taylor, where no prior drunk driving conviction is alleged or pending drunk driving charge.

In Dawes v. Superior Court (1980) 111 Cal. App. 3d 82, the plaintiff's punitive damages claim was supported by allegations that "the defendant ... while intoxicated, was ... driving a 1967 Ferrari automobile; ... made a righthand turn ... without stopping at the stop sign controlling traffic and proceeded in an easterly direction on said ... [s]treet, zigzagging in and out of traffic, in a designated 35 mile per hour zone, and gaining speed until he was traveling in excess of 65 miles per hour, with reckless disregard of the probable consequences of said conduct and with reckless disregard of the safety of others." (Id., at 86.) The plaintiff had further alleged the defendant "...knew that he was intoxicated and knew that he was operating said 1967 Ferrari at a speed in excess of 65 miles per hour in a 35 mile per hour zone, on a Sunday afternoon, in a marina visited by many persons, and with knowledge that probable serious injury would result to persons in the area as a result of said conduct, and with reckless disregard of the safety of others, including [the plaintiff]." (Id.) In addition the complaint alleged that, "immediately following the accident [the defendant] and his fellow employee and passenger ... falsely and fraudulently informed the investigating California Highway Patrol officer that [the passenger] was operating the vehicle when it struck the minor; and that this was done for the purpose of obstructing the investigation and [defendant's] avoiding responsibility." (Id.)

In contrast to Dawes, the allegations of the operative complaint do not belie the despicable conduct reflected in the conduct of an intoxicated driver zigzagging in and out of traffic, traveling 65 mph in a crowded area, and who deliberately attempted to mislead investigating law enforcement as to his involvement in the accident. The Court does not find that affirmatively denying consumption of alcohol is equivalent to the fraudulently informing law enforcement that another person was operating the motor vehicle. Further, that the other Vehicle Code violations alleged are insufficient to meet the standard set forth in Dawes.

Therefore, the Court grants the motion to strike.

The Court applies the same standard as to leave to amend that it applies on demurrer: Leave to amend should be granted where it appears that the facts alleged establish a cause of action under any possible legal theory or it is reasonably possible that the plaintiff can amend the complaint to allege any cause of action. (Canton Poultry & Deli, Inc v. Stockwell, Harris, Widom, and Woolverton (2003) 109 Cal.App.4th 1219, 1226.)

Therefore, the Court will permit Plaintiff ten (10) days to file an amended complaint as to the issue of punitive damages.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.